Law of Equity and Trusts (EQT1)

Module 2: Equitable Remedies

Lesson 3: Equitable Defences

Lesson Notes

KMVTECHUG
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Laches and Acquiescence

Laches is the equitable doctrine that unreasonable delay in seeking relief, combined with prejudice to the defendant or a change of position, can bar equitable remedies. Equity aids the vigilant, not those who sleep on their rights.

Acquiescence involves conduct by the claimant that amounts to assent to the defendant's behaviour, making it unfair to grant relief later. Both doctrines are fact-specific and discretionary.

Clean Hands

A claimant who has acted improperly in relation to the transaction may be refused equitable relief. The impropriety must be connected to the relief sought. Clean hands is a shield for the court' s conscience, not a general punishment for all bad character.

Key idea: Equitable defences protect the integrity of equitable relief. Delay, assent and improper conduct can all disentitile a claimant.

Reflect: *How does clean hands differ from a general moral judgment about the claimant?*

Other Defences and Discretion

Hardship, lack of mutuality, and the adequacy of damages can also lead a court to refuse specific performance or an injunction. Statutory limitation periods may apply alongside equitable doctrines of delay.

Under the Judicature Act Cap 16 the court administers law and equity together, but equitable remedies remain discretionary. Always analyse both the positive case for relief and the defences.

Key Takeaways

- Laches bars relief after unreasonable delay plus prejudice or change of position.
- Acquiescence treats the claimant as having accepted the situation.
- Clean hands requires a connection between the impropriety and the relief sought.
- Equitable remedies are discretionary even when a right is shown.

Quick Revision Checklist

- [ ] I can define laches and acquiescence.
- [ ] I can apply clean hands to a short fact pattern.
- [ ] I know equitable remedies can be refused even if a legal right exists.
- [ ] I can link these defences to the maxims studied in Module 1.